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JOSE INES APARICIO, ET AL. v. UBER TECHNOLOGIES, INC., ET AL.

CASE NO.: 25NWCV02569

HEARING: 07/02/2026 @

9:30 AM

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TENTATIVE ORDER

Defendant Uber Technologies, Inc.'s motion to compel arbitration, joined by Defendant Yun Li, is GRANTED. This action is stayed pending the outcome of arbitration.

Defendant Uber Technologies, Inc. to give notice.

Defendant Uber Technologies, Inc. (Uber) moves to compel Plaintiffs Jose Ines Aparicio (Ines), Jose Jeshua Aparicio Castro (Jeshua), and Carlos Aparicio (Carlos) (collectively, Plaintiffs) to submit their claims for arbitration and stay this action pending the completion of arbitration.

Background

On July 15, 2025, Plaintiffs filed this action against Defendants Uber Technologies, Inc., Yi Doe, Yun Li, Jose Alvaro Elizarraras Cruz, Luke Francis Muller, and Does 1 through 10. This action arises out of two

motor vehicle collisions involving Plaintiff Jeshua, the first on July 16, 2023, and the second on January 28, 2025. (Complaint, ¶ 12.) The complaint asserts four causes of action: (1) Negligence as to Yi Doe, Jun Li, Jose Alvaro Elizarraras Cruz; (2) Negligence as to Defendant Luke Francis Muller; (3) Owner's Liability (Vehicle Code §17150); and (4) Negligent Hiring, Retention, Supervision.

Legal Standard

Under both the Federal Arbitration Act (FAA) and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc., § 1281.2.) This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state...the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.) The moving party must also establish the other party's refusal to arbitrate the controversy. (Code Civ. Proc., § 1281.2.) "Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges." (*Baker v. Italian Maple Holdings, LLC* (2017) 13 Cal.App.5th 1152, 1160.)

In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.) A petition to compel arbitration is a suit in equity to compel specific performance of a contract. (*Frog Creek Partners, LLC. v. Vance Brown, Inc.* (2012) 206 Cal.App.4th 515, 532.)

Under the FAA, general contract defenses, such as fraud, duress, or unconscionability, may provide grounds for invalidating an arbitration agreement if they are enforced evenhandedly and do not interfere with fundamental attributes of arbitration. (9 U.S.C.A. § 1, et seq.)

Joinder

Defendant Jun Li (Li) files a Notice of Joinder to Uber's motion.

Generally, only a party to an arbitration agreement may enforce it. (*Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 785-86.) Li argues that while he is not a signatory to the pertinent Terms of Use, he may invoke the arbitration provisions under the agency equitable estoppel exceptions

Under the agency exception, "a defendant may enforce the arbitration agreement, 'when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement....'" (*Garcia, supra*, 11 Cal.App.5th at p. 788.) Li points to the allegations in the complaint. The complaint alleges "[t]o the extent Defendant YI and/or Defendant JUN LI was operating the vehicle for UBER at the time of the First Collision, Defendant UBER profited from the transportation services provided by Defendant YI and retained control over key aspects of his work, creating a principal-agent relationship." (Complaint ¶ 25.) Additionally, "UBER and YI and/or Defendant JUN LI entered into a contractual relationship which formed the basis for UBER's employment of YI and/or Defendant JUN LI." (Complaint ¶ 30.) Further, "Defendant UBER is liable for the acts of YI and/or Defendant JUN LI through respondeat superior, agency, ostensible agency, partnership, alter-ego, the doctrine of non-delegable duties, and other forms of vicarious liability." (Complaint ¶ 42.) The Court agrees with Li that the agency allegations are not "boilerplate," but rather, form the basis of Plaintiffs' claims against Uber. (See *Garcia, supra*, 11 Cal.App.5th at p. 788.)

As to the equitable estoppel exception, "a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claim when the causes of action against the nonsignatory are 'intimately founded in and intertwined with' the underlying contract obligations." (*Garcia, supra*, 11 Cal.App.5th at p. 786.) Here, Plaintiffs' claims against Li and Uber are intertwined: Plaintiff alleges Li was negligent in operating the vehicle and that Uber is liable because of its relationship with Li. The Court finds that these claims are inherently inseparable and Plaintiffs are therefore equitably estopped from refusing to arbitrate their claims against Li while proceeding to arbitration against Uber on an identical set of facts.

Based on the foregoing, Li's Notice of Joinder is GRANTED.

Discussion

Uber moves to compel Plaintiffs to submit their claims to arbitration and stay this action pending the outcome of arbitration. Li joins in this motion.

Validity of the Arbitration Agreement

Uber moves to compel arbitration pursuant to arbitration agreements contained in its terms of use (Terms). Specifically, Uber shows that Carlos, as an Uber account holder, signed up for Uber on February 12, 2020 and agreed to the then-effective November 12, 2019 Terms (November 2019 Terms). (Kosinski Decl., ¶ 8.) Uber shows that Carlos had a history of consenting to Uber's updated terms on February 24, 2021, January 23, 2022, and January 23, 2023 when presented with an in-app blocking pop-up screen with the header "[w]e've updated our terms." (Kosinski Decl., ¶¶ 9, 13.) Senior paralegal of Uber, Brandon Kosinski explains that "the in-app blocking pop-up screen precluded the use of the Uber app unless or until a user clicked the checkbox on the screen and clicked the large 'Confirm' button at the bottom of the screen." (Kosinski Decl., ¶ 10.) All the aforementioned Terms contain an arbitration agreement. (Kosinski Decl., ¶ 14.) The November 2019 Terms contain the following arbitration agreement, in relevant part:

Agreement to Binding Arbitration Between You and Uber.

You and Uber agree that any dispute, claim or controversy arising out of or relating to (a) these Terms or the existence, breach, termination, enforcement, interpretation or validity thereof, or (b) your access to or use of the Services at any time, whether before or after the date you agreed to the Terms, will be settled by binding arbitration between you and Uber, and not in the court of law.

(Kosinski Decl., Exh. B.)

Further, Uber shows that the December 16, 2021 and January

17, 2023 Terms, which Carlos consented to, required any third party to arbitrate their claims against Uber as the claims related to Carlos's use:

This Arbitration Agreement shall be binding upon, and shall include any claims brought by or against any third-parties, including but not limited to your spouses, heirs, third-party beneficiaries and assigns, where their underlying claims arise out of or relate to your use of the Services. To the extent that any third-party beneficiary to this agreement brings claims against the Parties, those claims shall also be subject to this Arbitration Agreement.

(Kosinski Decl., Exh. D, emphasis added.) Therefore, Uber argues that Ines and Jeshua, despite being non-signatories, are third-party beneficiaries under the Term's arbitration agreement. California courts bind nonsignatories to arbitrate their claims when "a benefit was conferred on the nonsignatory as a result of the contract, making the nonsignatory a third party beneficiary of the arbitration agreement." (County of Contra Costa v. Kaiser Foundation Health Plan, Inc. (1996) 47 Cal.App.4th 237, 242; Boucher v. Alliance Title Co., Inc. (2005) 127 Cal.App.4th 262, 268-69.)

In opposition, Plaintiffs argue that Ines and Jeshua are not bound as third-party beneficiaries because they did not interact with the Uber app, were never presented with the Terms, and were never given notice by Carlos, as the account holder. This argument is not persuasive. Plaintiffs each accepted transportation services by Uber and base their claims based on Uber's alleged responsibility for the conduct of its driver, Li. (Complaint, ¶¶ 15-42.) Plaintiffs are estopped from "refusing to comply with an arbitration clause 'when it receives a "direct benefit" from a contract containing an arbitration clause.'" (Boucher, supra, 127 Cal.App.4th at p. 269, citation omitted.) Moreover, the express terms of the Arbitration Provision show an intent to benefit and cover "any third parties" "where their underlying claims arise out of or relate to [the account holder's] use of the Services." (Kosinski Decl., Exh. D.) Here, Ines and Jesua bring claims arising out of Carlos's use of Uber's services and are thus expressly covered as third party beneficiaries under the Terms.

Plaintiffs additionally argue that Carlos relied on Uber's branding and app interface and "did not see any clear or conspicuous disclaimer stating that Uber was not responsible for the transportation or the driver." (Carlos Decl., 2:23-24.) Plaintiffs argue that under Kauders v. Uber Technologies,

Inc. (2021) 486 Mass. 557, 559, Uber is capable of requiring express affirmation regarding an account holder's guests. Plaintiffs' cited authority does not address third parties and is not persuasive here.

The Court finds that Uber meets its burden of establishing the existence of an arbitration agreement through its Terms that covers Plaintiffs' claims. "By its terms, the FAA 'provides for the enforcement of arbitration provisions in any contract evidencing a transaction involving interstate commerce.'" (Victrola 89, LLC v.

Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.) Based on the Terms and because this agreement involves interstate commerce, the FAA governs the agreement: "the parties agree and acknowledge that this Arbitration Agreement evidences a transaction involving interstate commerce and that the Federal Arbitration Act, 9 U.S.C. § 1et seq. ("FAA"), will govern its interpretation and enforcement and proceedings pursuant thereto. It is the intent of the parties to be bound by the provisions of the FAA for all purposes." (Kosinski Decl., Exh. D.)

Delegation Clause

The Terms require that the arbitrator must determine arbitrability:

The parties agree that the arbitrator ("Arbitrator"), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue.

(Kosinski Decl., Exh. D.) The Terms therefore manifest a "clear and unmistakable agreement" to have the arbitrator determine arbitrability. (Rodriguez v. American Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1123 ["Although the scope of an arbitration clause is generally a question for judicial

determination, the parties may, by clear and unmistakable agreement, elect to have the arbitrator, rather than the court, decide which grievances are arbitrable.”].)

The Terms additionally incorporate the ADR Arbitration Rules, Rule 8, which independently grants the arbitrator authority to rule on his or her own jurisdiction, including objections to the existence, scope, or validity of the arbitration agreement. “By incorporating rule 8(a) into their agreement, the parties clearly evidenced their intention to accord the arbitrator the authority to determine issues of arbitrability.” (Rodriguez, supra, 136 Cal.App.4th at p. 1123.) Plaintiffs do not dispute the existence or enforceability of the delegation clause. Therefore, the Court finds that arbitrability must be decided by the arbitrator.

Code of
Civil Procedure section 1281.2, subdivision (c)

Code of Civil Procedure section 1281.2, subdivision (c) provides that a court has discretion to deny enforcing an arbitration agreement if it determines “[a] party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.”

Plaintiffs argue that even if the arbitration agreement is found to be enforceable, this Court should exercise its discretion under Code of Civil Procedure section 1281.2, subdivision (c) to deny this motion to avoid conflicting rulings and duplicative litigation. Plaintiffs argue that they have brought tort claims against multiple defendants, including Muller, for his role in a second collision unrelated to the use of Uber services.

Because the Court determines that the arbitration agreement is governed by the FAA, Code of Civil Procedure section 1281.2 is preempted by the FAA. “ ‘In accordance with choice-of-law principles, the parties may limit the trial court's authority to stay or deny arbitration under the CAA by adopting the more restrictive procedural provisions of the FAA.’ ” (Victrola 89, LLC, supra, 46 Cal.App.5th at p. 345.) The Terms specify that “[i]t is the intent of the parties to be bound by the provisions of the FAA for all purposes...and that the FAA and AAA Rules shall preempt all state laws to the fullest extent permitted by law.” (Kosinski Decl., Exh. D.) Therefore, pursuant to the

Terms, the Court is without discretion to deny this motion.

Waiver

Lastly, Plaintiffs argue that Uber waived its right to compel arbitration by meeting and conferring with Plaintiffs regarding the merits of the pleadings, participating in this litigation, and filing this motion after seven months from the commencement of this action.

The inquiry for waiver in an arbitration provision governed by the FAA is whether the party “knowingly relinquish the right to arbitrate by acting inconsistently with that right?” (*Morgan v. Sundance, Inc.* (2022) 142 U.S. 1708, 1714.) “The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Id.* at p. 585.) As explained by the California Supreme Court in *St. Agnes Medical Center*, the determination of waiver is a question of fact, and the following factors “are relevant and properly considered” in determining waiver:

(1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether “the litigation machinery has been substantially invoked” and the parties “were well into preparation of a lawsuit” before the party notified the opposing party of an intent to arbitrate;

(3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay;

(4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings;

(5) “whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in

arbitration] had taken place”; and

(6) whether the delay “affected, misled, or prejudiced” the opposing party.”

(*St. Agnes Medical Center v. PacifiCare of California* (2003) 31 Cal.4th 1187, 1196.) Since the FAA applies, the sixth factor for prejudice is not applicable. (*Morgan, supra*, 142 U.S. at p. 1714.)

Plaintiffs show that Plaintiffs’ counsel and Uber’s defense counsel met and conferred over emails and telephone calls between July 30, 2025 and September 5, 2026 about the pleadings, at which time Uber did not mention an intent to arbitrate. (Song Decl., ¶¶ 7-10.) Plaintiff’s counsel states that on September 19, 2025, Uber’s defense counsel requested Plaintiffs sign a stipulation that Uber was not waiving its right to arbitrate, to which Plaintiffs disagreed. (Song Decl., ¶¶ 13-15.) After requesting extensions, Plaintiffs state that Uber served objection-only discovery responses. (Song Decl., ¶ 16.) Plaintiffs show that on November 26, 2025, Uber filed a case management statement demanding a jury trial and subsequently posting jury fees. (Song Decl., ¶ 18.) Plaintiffs state that Uber attempted to “reap the benefits of the litigation process” by requesting Plaintiffs provide their discovery responses to Muller’s discovery requests while refusing to participate in discovery itself. (Song Decl., ¶¶ 20, 21.)

In opposition, Uber first argues that meeting and conferring over the pleadings does not support a showing of waiver. “Answering a complaint and participating in litigation, on their own, do not waive the right to arbitrate.” (*Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438, 449.) Additionally, as to requesting Plaintiffs’ discovery responses to Muller’s requests, Uber argues that this does not constitute participation in litigation as a responding party is required to serve a copy of its responses to all parties who have appeared in an action. (See Code Civ. Proc., § 2030.260, subd. (c).)

Additionally, Uber shows that it made a demand for arbitration in its answer which it served on September 8, 2025 and in its arbitration demand letter on October 28, 2025. Additionally, Uber argues that it did not serve any discovery, did not notice depositions, and served only objections in response to discovery requests. Plaintiffs’ arguments regarding potential prejudice is not persuasive here because the FAA applies. (*Morgan, supra*, 142 U.S. at p. 1714.)

The Court does not find that Uber waived its right to arbitration. Uber evidenced its intent to arbitrate beginning in its answer, attempted to have Plaintiffs stipulate to arbitration, and did not participate in discovery. Therefore, the Court does not find that Uber substantially invoked the litigation machinery or took advantage of procedures that are inconsistent with discovery. (St. Agnes Medical Center, supra, 31 Cal.4th at p. 1196.) The only action that the Court finds appears contrary to Uber's intent to arbitrate is its demand for a jury trial in its case management statement. However, Uber moved to compel arbitration just over two months after the Court set a trial date and three months after it filed that case management statement. In Quach, a defendant was found to have waived its right to arbitrate after "being fully aware of its right to compel arbitration, [it] chose not to do so for 13 months, affirmatively indicated its intent to pursue a jury trial rather than arbitration, and actively engaged in discovery." (Quach, supra, 16 Cal.5th at p. 584.) Comparatively, here, Plaintiffs only show that Uber affirmatively indicated its intent to pursue a jury trial; Plaintiffs do not establish a comparative length of delay or that Uber participated in discovery. Based on the foregoing, the Court finds that the St. Agnes Medical Center factors weigh against a finding of waiver. (St. Agnes Medical Center, supra, 31 Cal.4th at p. 1195 ["waivers are not to be lightly inferred and the party seeking to establish a waiver bears a heavy burden of proof."].)

Accordingly, Uber's motion to compel arbitration is GRANTED.

Pursuant to Li's joinder, Plaintiffs' claims against Li are also ordered to arbitration.

Motion to Stay

Proceedings

California Code of

Civil Procedure section 1281.4 states that the court shall stay the action or proceeding if the court has ordered arbitration. (Code Civ. Proc., § 1281.4.) Accordingly, the Court will STAY proceedings pending arbitration.